

		CBH or RSM funds from URP patients or URP operations to pay personal expenses for himself or Gwyneth Khor; and that Khor did not transfer disputed URP-related proceeds from CBH or RSM into his personal bank account. (Khor Decl., ¶¶ 9, 10, 12, 13.) The reply argues that there is a conflict in evidence as to URP's access to CBH and RSM bank accounts, but there is not. Petersin states that both MSAs were terminated in July 2023. (Ex. A to Taran Decl., Petersin Decl., ¶ 21.) Thus, that URP was removed from the accounts and were blocked from access in August 2023 do not appear conflicting. Based on the evidence submitted, Plaintiff does not show that it is more likely than not that it will obtain a judgment against Defendant Khor for its claim of breach of contract. As such, Plaintiff fails to show the probable validity of its claim for breach of contract against Defendant Khor. The Court OVERRULES all objections (Objection Nos. 1-6) made by Defendant Khor. The Court DENIES Plaintiff's request for judicial notice filed with the moving papers as the material are not relevant to the determination of the issues on this Application. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (<i>State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.5th 422, 442-443.) The Court GRANTS Plaintiff's request for judicial notice filed with the reply as to the California Secretary of State Statements Information pursuant to Evidence Code section 452(h). Defendant Khor to give notice.
110	American Express National Bank vs. Chien 23-01330698	Claim of Exemption - Wage Garnishment Defendant Nelson Chien's Claim of Exemption is GRANTED for the reasons set forth below. The party claiming an exemption bears the burden of proof. (Code Civ. Proc., § 703.580(b).) The exemption statutes are to be liberally construed in favor of the

	claimant. (Independence Bank v. Heller (1969) 275 Cal.App.2d 84, 88.) “Money in a judgment debtor's deposit account that is not otherwise exempt under this chapter is exempt to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor.” (Code Civ. Proc., § 704.225.) When the claimant claims that property is exempt as necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor, the claim of exemption shall include a financial statement. (Code Civ. Proc., § 703.530(a). Here, Defendant has provided the required financial statement. That financial statement indicates that Defendant has three dependents: his spouse and two minor children. His gross income is \$10,000.00 per month and his monthly take home pay is \$6,000.00. His savings account has a balance of \$10,000.00 and his monthly expenses total to \$10,200.00 for necessities such as rent, food, utilities, medical and dental payments, insurance, school/childcare, transportation, and installment payments. Defendant avers that he has no other funds available to pay for basic necessities. A letter from JPMorgan Chase Bank, N.A. dated December 11, 2025 to the levying officer regarding the Post Judgment Writ of Execution confirms that the balances of Defendant’s accounts were \$5,929.95 and \$10,873.41 as of the date of that letter. In light of Defendant’s financial statement and Defendant’s monthly expenses, the Court finds that the money in the subject JPMorgan Chase Bank accounts are necessary for the support of Defendant and his dependents, including his spouse who does not bring in any income. Defendant has demonstrated that the money in those accounts are necessary for the support
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		of himself and his dependents given that his monthly expenses exceed his monthly take home income. Upon the Court's execution of a formal Order Determining Claim of Exemption, the Clerk shall transmit a certified copy of this order to the levying officer. (Code Civ. Proc., §703.580(e).) Moving party to give notice.
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